

ELIZABETH II



1972 CHAPTER xlviii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Dundee Extension.

[26th October 1972]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation of Order in annexed is hereby confirmed. schedule.
2. This Act may be cited as the Dundee Extension Order Short title. Confirmation Act 1972.

SCHEDULE

DUNDEE EXTENSION

Provisional Order to extend the boundaries of the city and royal burgh of Dundee; and for other purposes.

Whereas the Corporation of the city and royal burgh of Dundee (hereinafter referred to as "the Corporation") are vested with the municipal government of the said city and royal burgh (hereinafter referred to as "the city") and are the local authority therein:

And whereas the lands available within the city for the purpose of providing housing accommodation for the inhabitants of the city, relieving the overcrowding which prevails in parts of the city and redeveloping built up areas in the city are limited in extent and it is necessary to provide for the erection of houses and further redevelopment on lands outwith the existing boundaries of the city:

And whereas the area described in Part I of Schedule 1 to the Order (hereinafter referred to as "the added area") is situated in the county of Angus and immediately adjoins the city:

And whereas lands within the added area are suitable for housing and further development and it would be proper and expedient that such lands should be developed for such purposes in conjunction with the city:

And whereas the added area with the city forms a coincident and geographically convenient area the boundaries of which are readily capable of definition:

And whereas it is expedient and in the public interest that the municipal administration of the city and the added area should be under one authority:

And whereas it is expedient that the boundaries of the city should be extended to include the added area and that all franchises, rights, privileges and immunities and all public and general and local and personal Acts and Orders relating to and in force for the time being in or applicable to the city should as provided in this Order be applied to the added area:

And whereas the city is a county of a city under the name of the county of the city of Dundee and it is expedient that the added area should be separated and disjoined from the county of Angus and be incorporated with and form part of the county of the city of Dundee:

And whereas it is expedient that the added area should be added to and form part of municipal wards of the city as provided in this Order:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936: 1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Dundee Extension Order 1972 and this Order and the Dundee Corporation Orders 1957 to 1970 may be cited together as the Dundee Corporation Orders 1957 to 1972. Short and collective titles

2. In this Order unless there be something in the subject or context repugnant to such construction words and expressions to which meanings are assigned by the city Acts shall have the same respective meanings and the following words and expressions shall have the meanings hereinafter respectively assigned to them (that is to say):— Interpretation.

“ added area ” means the portion of the county of Angus by this Order incorporated with the existing city;

“ city ” means the city and royal burgh of Dundee as extended by this Order;

“ city Acts ” means the local Acts and Orders applicable to the city;

“ city map ” means a map showing the boundaries of the city and the several wards of the city signed by Gavin Stuart Douglas, Q.C., Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 and kept by the town clerk in pursuance of section 5 (Deposit of map of city) of this Order;

“ Corporation ” means the lord provost, magistrates and councillors of the existing city or of the city as the case may be;

“ county ” means the county of Angus;

“ county council ” means the county council of the county;

“ existing city ” means the city and royal burgh of Dundee existing immediately before the commencement of this Order;

“ Representation of the People Acts ” means the Representation of the People Acts 1949 to 1969;

“ town clerk ” means the town clerk of the existing city or of the city as the case may be.

**Commencement
of Order.**

3. This Order except where otherwise expressly provided shall be deemed to have commenced and to have had effect as on and from 16th May, 1972 (which date is hereinafter in this Order referred to as "the commencement of this Order").

**Extension of
boundaries
of city.**

4. The boundaries of the existing city shall be and are hereby extended to and shall include and comprehend in addition to the area embraced in the existing city the added area described in Part I of Schedule 1 to this Order.

**Deposit of
map of city.**

1936 c. 52.

5.—(1) A map of the city (distinguishing the added area) of which thirteen copies have been signed by Gavin Stuart Douglas, Q.C. Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within four weeks after the date of the passing of the Act confirming this Order be deposited as follows (that is to say): one copy in the office of the Clerk of the Parliaments, House of Lords, one copy in the Private Bill Office of the House of Commons, one copy in the Scottish Office, London, one copy with the town clerk at his office in Dundee, one copy with the sheriff clerk at his office in Dundee, one copy with the Commissioners of Inland Revenue, one copy with the Commissioners of Customs and Excise, two copies with the Department of Trade and Industry, one copy with the Post Office, one copy with the Registrar General of Births, Deaths and Marriages for Scotland, one copy with the Department of the Environment and one copy with the Director General Ordnance Survey.

(2) If there is any discrepancy between the said map and the description in Part II of Schedule 1 to this Order the said map shall be deemed to be correct and shall prevail except so far as relating to so much of the boundary described in the said Part II of the said schedule as follows the line of mean low-water springs in respect of which part of the said boundary the said description shall prevail.

(3) The copy of the map of the city deposited with the town clerk in pursuance of subsection (1) of this section shall also show the several wards of the city as described in Part II of Schedule 2 to this Order and shall be known as the city map, and if there is any discrepancy between the said map and the said descriptions the said map shall be deemed to be correct and shall prevail except so far as relating to so much of the boundary described in the said Part II of the said schedule as follows the line of mean low-water springs in respect of which part of the said boundaries the said descriptions shall prevail.

**Boundary of
county of city.**

6. The added area shall, subject to the provisions of this Order and for the purposes of the Order of 1957, be incorporated with and form part of the county of the city of Dundee and be disjoined and separated from the county and the city Acts shall be read and construed accordingly.

City parish.

7. The city parish shall include and comprehend the city.

8.—(1) The portion of the added area firstly described, the portion of the added area secondly described and the portion of the added area thirdly described in Part I of Schedule 2 to this Order shall respectively be added to and shall form part of the Ward Second (Riverside), Ward Eighth (Camperdown) and Ward Ninth (Balgay) of the existing city as those wards respectively existed immediately before the commencement of this Order.

Added area
to form part
of adjoining
wards and
boundaries of
wards.

(2) Unless and until otherwise determined the numbers, names and boundaries of the wards of the city shall be those respectively set forth and described in Part II of Schedule 2 to this Order and shown on the map referred to in subsection (3) of section 5 (Deposit of map of city) of this Order.

(3) The City of Dundee Wards Order 1963 is hereby repealed and the City Acts shall be read and construed as if for the references therein to the wards of the city there were substituted references to the wards of the city described in Part II of Schedule 2 to this Order and shown on the above-mentioned map.

S.I. 1963/1664.

9.—(1) After the commencement of this Order and notwithstanding anything to the contrary in any Act the following provisions shall apply and have effect with respect to the registration of electors in the city (that is to say):—

Register of
electors.

(i) In order to enable the city assessor to make up for the added area the register of electors for the year commencing 16th February, 1973, he shall be entitled to access to the books and schedules of any registration officer acting under the Representation of the People Acts for the county so far as they relate to the added area and such registration officer shall give the city assessor all necessary and reasonable facilities for that purpose: and

(ii) All rights and liabilities under any contracts entered into before the commencement of this Order by the county council or by any registration officer as to the printing of the list or register of Parliamentary and local government electors shall so far as applying to the added area be transferred to and vested in the city assessor and the Corporation and all expenses connected with the making up of the register of such electors for the added area shall be borne in accordance with and in terms of the provisions of the Representation of the People Acts.

(2) In the event of a municipal by-election occurring between the commencement of this Order and 15th February, 1973, in Ward Second (Riverside), Ward Eighth (Camperdown) or Ward Ninth (Balgay) as the said wards are respectively described in Part II of Schedule 2 to this Order, it shall be the duty of the city assessor to prepare a register of local government electors for the purpose of such by-election and such register shall consist of the existing register of local government electors for such ward together with such portion of the register of electors for any registration area as contains the names of local government

electors registered in respect of lands and heritages or premises situated in the part of the added area forming part of the ward in which such by-election occurs:

Provided that for the purpose of preparing any register of electors for the purpose of this subsection the city assessor shall be entitled to access to the books and schedules of any registration officer acting under the Representation of the People Acts for the county so far as such books and schedules relate to the added area and such registration officer shall give the city assessor all necessary and reasonable facilities for that purpose.

Sheriff may
vary procedure
for by-elections.

10. In the event of circumstances arising in connection with any such by-election as is referred to in subsection (2) of the immediately preceding section of this Order which may render it necessary or expedient to fix, postpone, alter or vary any date (other than the commencement of this Order) or any procedure prescribed by or in pursuance of the provisions of the Representation of the People Act or this Order or to make up any register or list of electors or any other matter relating to such by-election register or list, the sheriff may on a summary application by the town clerk forthwith fix any such date or sanction any such postponement, alteration or variation or dispense with any procedure in the making up of such register or list or any other matter as may in his judgment be best fitted to meet the circumstances of the case and the whole procedure following upon such application and any order made by the sheriff shall be valid and unchallengeable.

Property of
existing city
vested in
Corporation

11. Subject to the provisions of this Order the common good and all property heritable and movable (including all means, revenues and income of every description arising therefrom) belonging to or leviable within the existing city or to which the existing city is entitled or which is held or administered by any person for or on behalf of the community of the existing city or for the public ends and purposes thereof shall be vested in and be held by the Corporation for the behoof and benefit of the city or as the case may be administered by such person for or on behalf of the community of the city or for the public ends and purposes thereof and all debts and obligations due by or exigible from the existing city shall be due by and exigible from the city and all debts due to the Corporation by any person before the commencement of this Order may be demanded and recovered from such person and received and applied by the Corporation for the behoof of the city.

Powers
extended over
added area.

12. The Corporation, the lord provost, the magistrates and the dean of guild of the city shall (subject to the provisions of this Order) have, possess and may exercise the same powers and authorities including powers of assessment respectively in and over the city and over the inhabitants thereof as the Corporation, the lord provost, the magistrates and the dean of guild of the existing city have, possess and exercise in their several characters and capacities in and over the existing city whether by usage or at common law or by statute.

13. The several officers of or appointed by the Corporation shall have, possess and exercise in their several characters and capacities the same powers and authorities in and over the city as they have, possess and exercise in their several characters and capacities in and over the existing city whether by usage or at common law or by statute but without prejudice to the right of the Corporation to make such arrangements in regard to the said officers and their respective duties as before the commencement of this Order they were entitled to make with reference to the officers of the existing city.

14. All public and general and local and personal Acts relating to and in force in the existing city and all byelaws, rules, regulations, orders and directions made thereunder shall be subject to the provisions of this Order be exercised over and be applicable to the city.

15. Subject to the provisions of this Order and in so far as necessary to give full effect thereto—

- (1) all separate magistracies, councils, commissions, authorities and jurisdictions in the added area shall cease and determine;
- (2) all actions, prosecutions or processes both in civil and criminal causes before the justice of the peace courts for the added area in dependence at the date of the passing of the Act confirming this Order shall be adjudged and finally disposed of by the said justice of the peace courts notwithstanding anything in this Order to the contrary.

16. Subject to the provisions of this Order all jurisdictions, rights, powers and duties which before the commencement of this Order were exercised or exercisable by the county council or any other local authority within the added area or any part thereof shall cease and determine.

17.—(1) As from the commencement of this Order the Corporation shall be entitled at all reasonable times to inspect and take copies of all plans or documents relating to any land within the added area which are in the possession or under the control of the county council for the purposes of or in connection with the Town and Country Planning (Scotland) Acts 1947 to 1969, and the county council shall supply to the Corporation such information and shall afford to them such assistance for the purposes of or in connection with the said Acts as the Corporation may reasonably require.

(2) An office copy of every entry in the register relating to any land within the added area kept by the county council under section 12 of the Town and Country Planning (Scotland) Act 1947 shall within one month after the date of the commencement of this Order be supplied to the town clerk by the clerk of the county council.

(3) Any application for planning permission or for any consent or approval under the said Acts of 1947 to 1969 or for a determination under section 15 of the said Act of 1947 made to the county council before the commencement of this Order and not determined before

the commencement of this Order shall so far as it relates to land within the added area be treated as a like application made to the Corporation and shall be treated as having been made at the commencement of this Order:

Provided that it shall not be necessary for the Corporation to consult with any authority or person with whom consultation has already taken place in relation to that application.

(4) Any order, agreement, permission, approval, determination, consent, notice, proceeding or decision made, taken or given by the county council as local planning authority under the said Acts of 1947 to 1969 or having effect as if so made, taken or given and in force immediately before the commencement of this Order shall so far as it relates to any land within the added area have effect as if it had been made, taken or given by the Corporation as such authority in respect of that land.

(5) Any direction, approval, consent or decision given by the Secretary of State under or in pursuance of the said Acts of 1947 to 1969 or any enactment thereby repealed affecting the county council as local planning authority and in force immediately before the commencement of this Order shall so far as it relates to any land within the added area have effect as if the same had been given to the Corporation as local planning authority.

(6) The provisions of this section shall apply notwithstanding anything contained in section 24 (Books to be evidence) of this Order.

Industrial
development
certificates.
1947 c. 53.

18. Any certificate issued under section 12 (4) of the Town and Country Planning (Scotland) Act 1947 in respect of any land in the added area shall continue to have effect on and after the commencement of this Order as if this Order had not been made.

Abolition of
special
districts.

19.—(1) Any special lighting, drainage and scavenging districts of the county council so far as situated in the added area shall be and are hereby abolished and to that extent all resolutions of the county council and all orders and decrees of the sheriff or of any other authority constituting or relating to the said special districts shall be of no force or effect and the county council shall be relieved from all obligations in respect of the said special districts so far as situated in the added area.

(2) The Corporation shall not in respect of such special districts be under any obligations nor except by agreement with the local authority of such districts exercise any powers in such districts in so far as these are beyond the city.

Transfer of
property and
liabilities.

20.—(1) Subject to the provisions of this Order and except as may be otherwise agreed, all property and assets of every description vested in, held by or due or belonging to the county council or other local authority in the added area are by virtue of this Order and without the necessity of recording in the Register of Sasines any conveyance, notarial instrument, notice of title or other deed or writing transferred to and vested in and shall be held by and be due and belong to the

Corporation and shall form part of the property and assets of the Corporation for all the estate and interest therein of the county council or such authority and shall be received, held and enjoyed by the Corporation accordingly.

(2) All the liabilities, contracts and agreements of the county council and of such authority in relation to the added area are by virtue of this Order transferred and shall attach to the Corporation and shall form part of the liabilities, contracts and agreements of the Corporation and be enjoyed, performed, paid and discharged by them:

Provided that no liabilities, contracts and agreements as aforesaid entered into after 27th November, 1970, shall be transferred or attach to the Corporation unless necessary for, and entered into or incurred in, the ordinary course of carrying on the business of the authority concerned, or unless the consent in writing of the Corporation under the hand of the town clerk shall previously have been given.

(3) For the purpose of enabling the Corporation to complete a title if thought fit to any heritable property transferred to and vested in them by virtue of this Order by expediting a notarial instrument, notice of title or otherwise, this Order shall be deemed to be and may be used as a general disposition or assignation, as the case may be, of such property in favour of the Corporation.

(4) Subject to the provisions of any general Act of Parliament and of the city Acts and this Order the Corporation shall determine any question which arises as to the department of the Corporation to which any part of such property or assets ought to belong for the purposes of administration and any question as to the fund of the Corporation out of which such liabilities and obligations shall be defrayed.

21. Subject to the provisions of this Order—

(1) all bridges, highways, roads, streets, footpaths, lanes and courts in the added area, so far as the same are at the commencement of this Order vested in and managed, maintained and repaired by the county council, or by any district council or other local authority, shall by virtue of this Order be transferred to and vested in and shall be managed, maintained and repaired by the Corporation along with and in the same way and manner and to the same extent as the bridges, highways, roads, streets, footpaths, lanes and courts within the existing city; and

(2) the said council or authority shall be freed and relieved of the liability to repair and maintain all such bridges, highways, roads, streets, footpaths, lanes and courts in all time coming:

Provided that no bridges, highways, roads, streets, footpaths, lanes and courts in the added area shall be taken over by, transferred to or vested in the county council or in any council or authority as aforesaid after 27th November, 1970, unless the consent in writing of the Corporation under the hand of the town clerk shall previously have been given.

Roads, etc.
in added
area.

Adjustment of
property and
liabilities.

22. The provisions of section 141 of the Act of 1947 shall apply to this Order as if the alteration of area made by this Order were an alteration of area made under Part VI of that Act.

Proceedings
not to abate

23. All legal or other proceedings begun before the commencement of this Order and relating to any property or liabilities transferred to the Corporation under this Order may be carried on with the substitution of the Corporation as party to the proceedings in lieu of the authority from whom the property or liabilities was or were transferred and any such proceedings may be amended in such manner as may be necessary for that purpose.

Books to be
evidence.

24.—(1) All books, documents (including certified copies of agreements relating to the added area), maps and plans directed or authorised to be kept by the county council or any other local authority in the added area by any Act or otherwise shall so far as they relate to the added area belong and be transferred to the Corporation and in so far as they would at the commencement of this Order be receivable in evidence shall be admitted as evidence in all courts and proceedings notwithstanding the cesser of the powers of the county council or such authority.

(2) This section shall not apply to the books, documents, maps and plans kept by the county council or other local authority which relate to parts of the county other than the added area but the Corporation and their officers shall be entitled to access to such books, documents, maps and plans in so far as may be necessary in relation to matters affecting the added area and the respective clerks or other officers of the county council and of the said authorities shall afford all necessary and reasonable facilities for that purpose.

Saving for
county
councillors.

25. Notwithstanding anything contained in the Act of 1947 or any other enactment or this Order any member of the county council or of any district council who at the commencement of this Order represents any electoral division situated partly within and partly without the added area shall in ordinary course continue to be a member of the county council or of such district council as the case may be until the next election of county councillors or district councillors as the case may be after the commencement of this Order.

Saving
recovery of
rates by
county
councils.

26. Nothing in this Order shall prejudice or interfere with the powers of the county council to recover all rates and assessments imposed by and due to them in respect of subjects in the added area for any year before the commencement of this Order.

Order not to
affect election
of members to
serve in
Parliament.

27. Nothing in this Order shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain the same in all respects as if the Act confirming this Order had not been passed.

28. The Corporation in addition to any other powers of borrowing which they may have may from time to time borrow at interest such sums of money as may be necessary for—

(a) the several purposes of this Order;

(b) the payment of the costs, charges and expenses of this Order:

Provided that money so borrowed for purpose (a) shall be repaid within thirty years from the date or dates of borrowing and that money so borrowed for purpose (b) shall be repaid within five years from the commencement of this Order.

29. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946, or of section 259 of the Act of 1947.

Saving for
control on
borrowing.

1946 c. 58.

30. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown or shall subject to the provisions of this Order any lands, buildings or works vested in or occupied by the Crown or any department of Her Majesty's Government except to such extent as Her Majesty or such department may voluntarily agree.

Crown rights.

31. All costs, charges and expenses preliminary to and of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital), rates or revenues belonging to them or under their control or out of moneys to be borrowed by them under this Order for that purpose.

Costs of
this Order.

SCHEDULES

SCHEDULE 1

PART I

DESCRIPTION OF BOUNDARY OF THE ADDED AREA

Commencing on the boundary of the existing city on the shore of the Firth of Tay where the said boundary meets the existing boundary between the counties of Angus and Perth, thence proceeding generally north-westward, south-westward and northward along the said boundary between the said counties to a point in the centre of the Lochee Burn 28 yards or thereabouts northward of the junction of that burn with the Fowlis Burn, thence generally northward and north-eastward along the centre of the said Lochee Burn to a point opposite the south-west corner of enclosure No. 8979 on the 1/2500 Ordnance Survey National Grid Plan NO 3431, Edition of 1969, thence northward along the western boundary of the said enclosure No. 8979 for a distance of 70 yards or thereabouts, thence westward for a distance of 2 yards or thereabouts to the centre of an unnamed burn, thence generally northward along the centre of the said unnamed burn to its issue at the south-east corner of enclosure No. 7540 on the 1/2500 Ordnance Survey National Grid Plan NO 3432, Edition of 1969, thence proceeding northward along the eastern boundary of the said enclosure to the boundary of enclosure No. 0346 on the said map, thence proceeding eastward along the southern boundary of the said enclosure No. 0346 on the said map, thence continuing eastward along the southern boundaries of enclosures Nos. 0346, 1741 and 2840 on the 1/2500 Ordnance Survey National Grid Plan NO 3532, Edition of 1969 to the south-east corner of the said enclosure No. 2840, thence proceeding north-eastward across Liff Road to a point on the boundary of the existing city on the north side of Liff Road 70 yards or thereabouts westward of a point on the boundary of the existing city on the prolongation northward of the west side of Myrekirk Road, thence proceeding eastward and southward along the boundary of the existing city to the point of commencement.

PART II

DESCRIPTION OF THE BOUNDARIES OF THE CITY

Commencing at a point on the shore of the Firth of Tay due south of the intersection of the centre line of Kingsway West and the prolongation southward of the west side of Myrekirk Road and on the boundary of the county of Perth, thence proceeding generally north-westward, south-westward and northward along the said boundary of the said county to a point in the centre of the Lochee Burn 28 yards or thereabouts northward of the junction of that burn with the Fowlis Burn, thence generally northward and north-eastward along the centre of the said Lochee Burn to a point opposite the south-west corner of enclosure No. 8979 on the 1/2500 Ordnance Survey National Grid Plan NO 3431, Edition of 1969, thence northward along the western boundary of the said enclosure No. 8979 for a distance of 70 yards or thereabouts, thence westward

SCH. 1
—cont.

for a distance of 2 yards or thereabouts to the centre of an unnamed burn, thence generally northward along the centre of the said unnamed burn to its issue at the south-east corner of enclosure No. 7540 on the 1/2500 Ordnance Survey National Grid Plan NO 3432, Edition of 1969, thence proceeding northward along the eastern boundary of the said enclosure to the southern boundary of enclosure No. 0346 on the said map, thence proceeding eastward along the southern boundary of the said enclosure No. 0346, on the said map, thence continuing eastward along the southern boundaries of enclosures Nos. 0346, 1741 and 2840 on the 1/2500 Ordnance Survey National Grid Plan NO 3532, Edition of 1969 to the south-east corner of the said enclosure No. 2840, thence north-eastward across Liff Road to the western boundary of Camperdown Estate, thence northward along the said western boundary of the said Estate to its north-west corner at the junction of Gourdie Brae with the Coupar Angus Road, thence south-eastward along the south side of Coupar Angus Road to a point therein opposite the east side of Templeton Road, thence northward across the Coupar Angus Road to the east side of Templeton Road thence northward along the east side of Templeton Road to the south side of the service road leading to South Auchray Farm thence eastward along the south side of the said service road and in continuation eastward to the north-west corner of the enclosure of Clatto reservoir thence northward in continuation of the west boundary of the enclosure of Clatto reservoir to the north boundary of Baldragon Wood thence eastward along the north boundary of Baldragon Wood and in continuation eastward along the north side of the service road to Baldragon Farm and in continuation eastward to the west side of the former Dundee and Newtyle branch railway thence south-eastward along the said west side of the said former railway to the point therein 60 feet south-eastward from the point on the said west side of the said former railway where a prolongation in a straight line eastward of the line of the south side of Bracken Road would intersect the said west side of the said former railway thence proceeding in a straight line eastward to a point in the centre of the Dighty Water on the west side of the bridge carrying the Baldovan Road over the Dighty Water thence proceeding eastward north-eastward and south-eastward following the course and along the centre of the Dighty Water to a point in the centre of the Dighty Water 45 yards or thereabouts north-east of the east side of the bridge carrying the Old Glamis Road over the Dighty Water thence proceeding in a straight line eastward to a point situated on the fence between the enclosures Nos. 6931 and 8700 as shown on the 1/2500 Ordnance Survey National Grid Plan NO 4134, Edition of 1966, at a distance of 190 yards or thereabouts east of the centre of the public road leading from Dundee to Forfar thence eastward for a distance of 190 yards or thereabouts to a point on the last-mentioned fence at the north-east corner of the said enclosure No. 8700, thence in a straight line eastward to a point on the south side of the public road leading from Baldovie crossroads to Kingennie railway station at the north-west corner of enclosure No. 0076 as shown on the 1/2500 Ordnance Survey National Grid Plan NO 4533, Edition of 1965, thence in a straight line east-south-eastward to a point on the south side of the public road leading from Dundee to Arbroath 13 yards or thereabouts east of the centre line of the Dundee/Forfar branch railway thence along the boundary

SCH. I
—cont

fence on the east side of the said branch railway to a point on the west side of North Balmossie Street, thence proceeding south-eastward along the west side of North Balmossie Street to Dalhousie Road, thence eastward across the width of North Balmossie Street to a point on the north side of Dalhousie Road, thence across Dalhousie Road and along the east side of South Balmossie Street and continuing south-eastward in a prolongation thereof in a straight line to the line of mean low-water springs on the shore of the Firth of Tay, thence westward along the line of mean low-water springs on the said shore to the boundary of the county of Perth, thence proceeding north-westward to the point of commencement.

SCHEDULE 2

PART I

DESCRIPTIONS OF BOUNDARIES OF PORTIONS OF ADDED AREA TO BE ADDED TO WARDS

AREA TO BE ADDED TO WARD SECOND (RIVERSIDE)

That portion of the added area which is bounded by a line commencing on the boundary of the existing city on the shore of the Firth of Tay where the said boundary meets the existing boundary between the counties of Angus and Perth, thence proceeding generally north-westward and northward along the said boundary between the said counties to a point in the centre of Perth Road, thence proceeding eastward along the centre of Perth Road to the boundary of the existing city, thence southward along the boundary of the existing city to the point of commencement.

AREA TO BE ADDED TO WARD NINTH (BALGAY)

That portion of the added area which is bounded by a line commencing at a point on the boundary of the existing city in the centre of Perth Road, thence proceeding westward along the centre of Perth Road to the existing boundary between the counties of Angus and Perth, thence proceeding generally north-westward and northward along the said boundary between the said counties to a point in the centre of the Lochee Burn 28 yards or thereabouts northward of the junction of that burn with the Fowlis Burn, thence northward along the centre of the said Lochee Burn to the road leading from New Mill of Gray to Kingsway West, thence south-eastward and eastward along the centre of the said road to the centre of Kingsway West, thence north-eastward along the centre of Kingsway West for a distance of 215 yards or thereabouts to a point north of Balgarthno Cottages, thence south-eastward in a straight line to a point on the boundary of the existing city 181 yards or thereabouts south of the centre of Spey Drive, thence southward along the boundary of the existing city to the point of commencement.

AREA TO BE ADDED TO WARD EIGHTH (CAMPERDOWN)

That portion of the added area which is bounded by a line commencing at a point on the boundary of the existing city 181 yards or thereabouts southward of the centre of Spey Drive, thence proceeding

north-westward north of Balgarthno Cottages in a straight line to a point in the centre of Kingsway West 215 yards or thereabouts north-eastward of the centre of the junction of Kingsway West with the road leading to New Mill of Gray, thence proceeding south-westward along the centre of Kingsway West to the centre of the said junction, thence proceeding westward and north-westward along the centre of the said road leading to New Mill of Gray to the centre of the Lochee Burn, thence generally northward and north-eastward along the centre of the said Lochee Burn to a point opposite the south-west corner of enclosure No. 8979 on the 1/2500 Ordnance Survey National Grid Plan NO 3431, Edition of 1969, thence northward along the western boundary of the said enclosure No. 8979 for a distance of 70 yards or thereabouts, thence westward for a distance of 2 yards or thereabouts to the centre of an unnamed burn, thence generally northward along the centre of the said unnamed burn to its issue at the south-east corner of enclosure No. 7540 on the 1/2500 Ordnance Survey National Grid Plan NO 3432, Edition of 1969, thence proceeding northward along the eastern boundary of the said enclosure to the southern boundary of enclosure No. 0346 on the said map, thence proceeding eastward along the southern boundary of the said enclosure No. 0346, on the said map, thence continuing eastward along the southern boundaries of enclosures Nos. 0346, 1741 and 2840 on the 1/2500 Ordnance Survey National Grid Plan NO 3532, Edition of 1969, to the south-east corner of the said enclosure No. 2840, thence proceeding north-eastward across Liff Road to a point on the boundary of the existing city on the north side of Liff Road 70 yards or thereabouts westward of a point on the boundary of the existing city on the prolongation northward of the west side of Myrekirk Road, thence proceeding eastward and southward along the boundary of the existing city to the point of commencement.

SCH. 2
—cont.

PART II

DESCRIPTIONS OF BOUNDARIES OF THE WARDS OF THE CITY

WARD FIRST (HARBOUR)

Commencing at a point on the city boundary on the shore of the Firth of Tay opposite the east boundary wall of 18 Dundee Road, thence northward to and along the said boundary wall to Dundee Road, thence in a straight line north-westward to the centre of the southern end of Fairfield Road, thence northward along the centre of Fairfield Road to Arbroath Road, thence south-westward along the centre of Arbroath Road to Albert Street, thence northward along the centre of Albert Street to Langlands Street, thence westward and northward along the centre of Langlands Street to Dura Street, thence south-westward along the centre of Dura Street to Dens Road, thence southward along the centre of Dens Road to Laing Street, thence south-westward along the centre of Laing Street to Cotton Road, thence northward along the centre of Cotton Road to Ann Street, thence south-westward along the centre of Ann Street to Forebank Road, thence southward along the centre of Forebank Road to Victoria Road, thence eastward along the centre of Victoria Road to King's Road, thence generally southward along the centre of King's

SCH. 2
—*cont.*

Road to King Street, thence generally south-westward along the centre of King Street, Cowgate, Murraygate and High Street to Castle Street, thence south-eastward along the centre of Castle Street to Dock Street, thence south-westward along the centre of Dock Street for a distance of 43 yards or thereabouts, thence in a straight line south-eastward to the city boundary, thence generally eastward along the city boundary to the point of commencement.

WARD SECOND (RIVERSIDE)

Commencing at a point on the city boundary on the shore of the Firth of Tay due south of the intersection of the centre line of Kingsway West and the prolongation southward of the west side of Myrekirk Road and on the boundary of the county of Perth, thence proceeding generally north-westward and northward along the city boundary to Perth Road, thence south-eastward along the centre of Perth Road to Glamis Road, thence northward along the centre of Glamis Road to Blackness Road, thence eastward along the centre of Blackness Road to Annfield Road, thence southward along the centre of Annfield Road to Hawkhill, thence eastward along the centre of Hawkhill and West Port to North Tay Street, thence northward along the centre of North Tay Street and Lochee Road to Dudhope Crescent Road, thence eastward along the centre of Dudhope Crescent Road to Parker Street, thence northward along the centre of Parker Street to Barrack Road, thence eastward along the centre of Barrack Road to Constitution Road, thence northward along the centre of Constitution Road to Constitution Street, thence eastward along the centre of Constitution Street to Hilltown, thence southward along the centre of Hilltown to Ann Street, thence north-eastward along the centre of Ann Street to Forebank Road, thence southward along the centre of Forebank Road to Victoria Road, thence eastward along the centre of Victoria Road to King's Road, thence generally southward along the centre of King's Road to King Street, thence generally south-westward along the centre of King Street, Cowgate, Murraygate and High Street to Castle Street, thence south-eastward along the centre of Castle Street to Dock Street, thence south-westward along the centre of Dock Street for a distance of 43 yards or thereabouts, thence in a straight line south-eastward to the city boundary, thence westward along the city boundary to the point of commencement.

WARD THIRD (LOCHEE)

Commencing at a point on the city boundary at the junction of Coupar Angus Road with Templeton Road, thence eastward in a straight line south of St. Mary's Housing Estate to a point in the centre of Macalpine Road, 50 yards or thereabouts south of the junction of St. Leonard Place with Macalpine Road, thence generally south-eastward along the centre of Macalpine Road to the centre of the circle at the junction of Macalpine Road, Kingsway West, Clepington Road and King's Cross Road, thence continuing south-eastward along the centre of Clepington Road to the centre of the former Dundee and Newtyle branch railway, thence south-westward and westward along the centre of the said former branch railway to a point opposite the centre of Buttar's Loan, thence northward along the centre of Buttar's

Loan and Liff Road to Kingsway West, thence north-eastward along the centre of Kingsway West to the centre of the circle at the junction of Kingsway West and Coupar Angus Road, thence north-westward along the centre of Coupar Angus Road to the point of commencement.

SCH. 2
—cont.

WARD FOURTH (CRAIGIE)

Commencing at the centre of the junction of Albert Street with Arbroath Road, thence northward along the centre of Albert Street to Langlands Street, thence westward and northward along the centre of Langlands Street to Dura Street, thence south-westward along the centre of Dura Street to Dens Road, thence north-westward along the centre of Dens Road to Arklay Street, thence northward along the centre of Arklay Street to Clepington Road, thence eastward along the centre of Clepington Road to Mains Loan, thence northward along the centre of Mains Loan to Kingsway, thence south-eastward along the centre of Kingsway and Kingsway East to the centre of the circle at the junction of Kingsway East, Pitkerro Drive, Pitkerro Road and Old Craigie Road, thence north-eastward and eastward along the centre of Pitkerro Road to its junction with Drumgeith Road, thence southward along the centre of Drumgeith Road and Douglas Road to Arbroath Road, thence westward along the centre of Arbroath Road to the point of commencement.

WARD FIFTH (CAIRD)

Commencing at a point in Clepington Road opposite the centre of Provost Road, thence north-westward and northward along the centre of Clepington Road and Old Glamis Road to the city boundary, thence eastward along the city boundary to Longhaugh Road, thence generally southward along the centre of Longhaugh Road to Pitkerro Road, thence generally south-westward along the centre of Pitkerro Road to the centre of the circle at the junction of Kingsway East, Pitkerro Drive, Pitkerro Road and Old Craigie Road, thence westward along the centre of Kingsway East and Kingsway to Mains Loan, thence southward along the centre of Mains Loan to Clepington Road, thence westward along the centre of Clepington Road to the point of commencement.

WARD SIXTH (LAW)

Commencing at a point in Lochee Road at its junction with Dudhope Terrace, thence north-westward along the centre of Lochee Road and Logie Street and in prolongation thereof to the centre of the former Dundee and Newtyle branch railway, thence generally north-eastward along the centre of the said former branch railway to the centre of Clepington Road, thence north-westward along the centre of Clepington Road to the centre of the circle at the junction of Clepington Road, Kingsway West, King's Cross Road and Macalpine Road, thence north-westward along the centre of Macalpine Road to Camperdown Road, thence eastward along the centre of Camperdown Road and Gillburn Road to Old Glamis Road, thence southward along the centre of Old Glamis Road and Clepington Road to Provost Road, thence southward along the centre of Provost Road to Moncur Crescent, thence westward along the centre of Moncur Crescent to the centre of the circle at the junction of Moncur Crescent,

SCH. 2
—cont.

Strathmartine Road, Strathmore Avenue and Caird Avenue, thence westward along the centre of Strathmore Avenue to Milton Street, thence southward along the centre of Milton Street to Byron Street, thence eastward along the centre of Byron Street to Bruce Street, thence southward along the centre of Bruce Street and Carmichael Street to the centre of McKinnon Street, thence in a straight line to the north-east corner of the property known as No. 14 East Somerville Place, thence south-eastward along the north-eastern boundary of the said property and continuing south-eastward along the south-western boundary of the Dundee Linen Works to Constitution Street, thence south-westward along the centre of Constitution Street to Somerville Place, thence westward along the centre of Somerville Place and Dudhope Terrace to the point of commencement.

WARD SEVENTH (DOWNFIELD)

Commencing at a point in Macalpine Road opposite the centre of Camperdown Road, thence eastward along the centre of Camperdown Road and Gillburn Road to Old Glamis Road, thence northward along the centre of Old Glamis Road to the city boundary, thence generally westward and southward along the city boundary to the junction of Templeton Road with Coupar Angus Road, thence eastward in a straight line south of St. Mary's Housing Estate to a point in the centre of Macalpine Road 50 yards or thereabouts south of the junction of St. Leonard Place with that road, thence southward along the centre of Macalpine Road to the point of commencement.

WARD EIGHTH (CAMPERDOWN)

Commencing at a point in the centre of the former Dundee and Newtyle branch railway, opposite the centre of Buttar's Loan, thence northward along the centre of Buttar's Loan and Liff Road to Kingsway West, thence north-eastward along the centre of Kingsway West to the centre of the circle at the junction of Kingsway West and Coupar Angus Road, thence north-westward along the centre of Coupar Angus Road to the city boundary, thence north-westward and generally southward along the city boundary to the road leading from New Mill of Gray to Kingsway West, thence south-eastward and eastward along the centre of the said road to the centre of Kingsway West, thence north-eastward along the centre of Kingsway West for a distance of 215 yards or thereabouts to a point north of Balgarthno Cottages, thence south-eastward in a straight line to a point on the boundary of Menzieshill Housing Estate 181 yards or thereabouts due south of the centre of Spey Drive, thence southward and eastward along the western and southern boundary of the said Housing Estate to its junction with Liddel Road, thence northward along the centre of Liddel Road to its junction with Dickson Avenue, thence continuing northward across Dickson Avenue to the service path immediately to the east of Block No. 184/194 Yarrow Terrace and continuing northward along the said service path to a point in Yarrow Terrace at the north-east corner of Block No. 62/74 Yarrow Terrace, thence northward to the south-west corner of the East of Scotland Water Board water tower enclosure, thence eastward and northward along the boundary fence of the said enclosure to the south-west corner of Hillside Primary School, thence northward along the western boundary of the said school to Denoon

Terrace and continuing northward across Denoon Terrace to the south-westmost corner of the boundary of the dwelling-house at 103 Denoon Terrace thence north-westward along the western boundary of the said dwelling-house and continuing in prolongation thereof in a straight line across Charleston Drive to the point of commencement.

SCH. 2
—cont.

WARD NINTH (BALGAY)

Commencing at a point in the centre of Hawkhill opposite Annfield Road, thence eastward along the centre of Hawkhill and West Port to North Tay Street, thence northward along the centre of North Tay Street and Lochee Road to Dudhope Crescent Road, thence eastward along the centre of Dudhope Crescent Road to Parker Street, thence northward along the centre of Parker Street to Barrack Road, thence eastward along the centre of Barrack Road to Constitution Road, thence northward along the centre of Constitution Road to Somerville Place, thence westward along the centre of Somerville Place and Dudhope Terrace to Lochee Road, thence north-westward along the centre of Lochee Road and Logie Street and in prolongation thereof to the centre of the former Dundee and Newtyle branch railway, thence westward along the centre of the said former branch railway to a point opposite the centre of Buttar's Loan, thence south-eastward in a straight line across Charleston Drive to meet the prolongation northwards of the western boundary of the dwelling-house at 103 Denoon Terrace, thence south-eastward along the western boundary of the said dwelling-house to the south-westmost corner thereof, thence southward across Denoon Terrace and along the western boundary of Hillside Primary School to the north-east corner of the East of Scotland Water Board water tower enclosure, thence southward and westward along the boundary fence of the said water tower enclosure to the south-west corner thereof, thence southward in a straight line to the service path at the junction of Yarrow Terrace at the north-east corner of Block No. 62/74 Yarrow Terrace, thence southward along said service path to meet Dickson Avenue at a point immediately to the east of Block No. 184/194 Yarrow Terrace, thence continuing southward across Dickson Avenue to the centre of Liddel Road, thence southward along the centre of Liddel Road to the point where it meets the southern boundary of the Menzieshill Housing Estate, thence westward and northward along the southern and western boundary of the said Housing Estate to a point 181 yards or thereabouts south of the centre of Spey Drive, thence north-westward in a straight line north of Balgarthno Cottages to a point in the centre of Kingsway West 215 yards or thereabouts north-eastward of the centre of the junction of Kingsway West with the road leading to New Mill of Gray, thence south-westward along the centre of Kingsway West to the centre of the said junction, thence westward and north-westward along the centre of the said road leading to New Mill of Gray to the city boundary, thence south-eastward along the city boundary to the centre of Perth Road, thence south-eastward along the centre of Perth Road to Glamis Road, thence northward along the centre of Glamis Road to Blackness Road, thence eastward along the centre of Blackness Road to Annfield Road, thence southward along the centre of Annfield Road to the point of commencement.

SCH. 2
—cont.**WARD TENTH (DOUGLAS)**

Commencing at a point in Arbroath Road opposite the centre of Douglas Road, thence northward along the centre of Douglas Road and Drumgeith Road to its junction with Pitkerro Road, thence westward along the centre of Pitkerro Road to Longhaugh Road, thence generally northward along the centre of Longhaugh Road to the city boundary, thence eastward along the city boundary to Kellas Road, thence southward along the centre of Kellas Road and Baldovie Road to Arbroath Road, thence westward along the centre of Arbroath Road to the point of commencement.

WARD ELEVENTH (BROUGHTY FERRY)

Commencing at a point on the city boundary on the shore of the Firth of Tay opposite the east boundary wall of 18 Dundee Road, thence northward to and along the said boundary wall to Dundee Road, thence in a straight line north-westward to the centre of the southern end of Fairfield Road, thence northward along the centre of Fairfield Road to Arbroath Road, thence eastward along the centre of Arbroath Road to Baldovie Road, thence northward along the centre of Baldovie Road and Kellas Road to the city boundary, thence south-eastward, south-westward, south-eastward and westward along the city boundary to the point of commencement.

WARD TWELFTH (HILLTOWN)

Commencing at a point in the centre of Constitution Street opposite the south-western boundary of the Dundee Linen Works, thence eastward along the centre of Constitution Street to Hilltown, thence southward along the centre of Hilltown to Ann Street, thence north-eastward along the centre of Ann Street to Cotton Road, thence southward along the centre of Cotton Road to Laing Street, thence north-eastward along the centre of Laing Street to Dens Road, thence north-westward along the centre of Dens Road to Arklay Street, thence northward along the centre of Arklay Street to Clepington Road, thence westward along the centre of Clepington Road to Provost Road, thence southward along the centre of Provost Road to Moncur Crescent, thence westward along the centre of Moncur Crescent to the centre of the circle at the junction of Moncur Crescent, Strathmartine Road, Strathmore Avenue and Caird Avenue, thence westward along the centre of Strathmore Avenue to Milton Street, thence southward along the centre of Milton Street to Byron Street, thence eastward along the centre of Byron Street to Bruce Street, thence southward along the centre of Bruce Street and Carmichael Street to the centre of McKinnon Street, thence in a straight line to the north-east corner of the property known as No. 14 East Somerville Place, thence south-eastward along the north-eastern boundary of the said property and continuing south-eastward along the south-western boundary of the Dundee Linen Works to the point of commencement.

PRINTED IN ENGLAND BY OYEZ PRESS LTD.

FOR C. H. BAYLIS, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

16p net

SBN 10 514872 5



Dundee Extension Order Confirmation Act 1972

CHAPTER xlviii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

DUNDEE EXTENSION

1. Short and collective titles.
2. Interpretation.
3. Commencement of Order.
4. Extension of boundaries of city.
5. Deposit of map of city.
6. Boundary of county of city.
7. City parish.
8. Added area to form part of adjoining wards and boundaries of wards.
9. Register of electors.
10. Sheriff may vary procedure for by-elections.
11. Property of existing city vested in Corporation.
12. Powers extended over added area.

Section

13. Officers in existing city.
14. Application of general and local Acts.
15. Separate jurisdictions to cease.
16. Powers of local authorities to cease in added area.
17. Town planning.
18. Industrial development certificates.
19. Abolition of special districts.
20. Transfer of property and liabilities.
21. Roads, etc., in added area.
22. Adjustment of property and liabilities.
23. Proceedings not to abate.
24. Books to be evidence.
25. Saving for county councillors.
26. Saving recovery of rates by county councils.
27. Order not to affect election of members to serve in Parliament.
28. Borrowing powers.
29. Saving for control on borrowing.
30. Crown rights.
31. Costs of Order.

SCHEDULES:

Schedule 1—

Part I—Description of boundary of the added area

Part II—Description of the boundaries of the city.

Schedule 2—

Part I—Descriptions of boundaries of portions of added area to be added to wards.

Part II—Descriptions of boundaries of the wards of the city.